II. Rule 37(c), FRCP: Substantially Justified or Harmless.

Rule 37(c) is an "automatic" discovery sanction. Fed. R. Civ. P. 37(c) advisory committee note, 1993 Amendment; *see also Campbell v. United States*, 470 F. App'x 153 (4th Cir. 2012). It has two exceptions: (1) when the failure to disclose is substantially justified and (2) when the nondisclosure is harmless. *Southern States Rack and Fixture, Inc. v. Sherwin-Williams Co*., 318 F.3d 592, 596 (4th Cir. 2003).

In determining whether the nondisclosure is substantially justified or harmless, the Fourth Circuit suggests weighing the factors in the following five-factor test:

(1) the surprise to the party against whom the evidence would be offered;
(2) the ability of that party to cure the surprise;
(3) the extent to which allowing the evidence would disrupt the trial;
(4) the importance of the evidence; and
(5) the nondisclosing party's explanation for its failure to disclose the evidence.

Id. at 597. The first four factors "relate mainly to the harmlessness exception, while the remaining factor—explanation for the nondisclosure—relates primarily to the substantial justification exception." *Id.* "The burden of establishing these [five] factors lies with the nondisclosing party." *Wilkins v. Montgomery*, 751 F.3d 214, 222 (4th Cir. 2014).

III. Rule 56, FRCP: Summary Judgment.

Summary judgment is appropriate if a party "shows that there is no genuine dispute as to any material fact" and that the movant is entitled to judgment as a matter of law. Fed. R. Civ. P. 56(a). The party seeking summary judgment shoulders the initial burden of demonstrating to the court that there is no genuine issue of material fact. *Celotex Corp. v. Catrett*, 477 U.S. 317, 323 (1986). Once the moving party makes this threshold demonstration, the non-moving party may not rest upon mere allegations or denials averred in the pleading, but rather must, by affidavits or other

means permitted by the Rule, set forth specific facts showing that there is a genuine issue for trial. *See* Fed. R. Civ. P. 56; *see also Celotex Corp*., 477 U.S. at 323.

A party asserting that a fact is genuinely disputed must support the assertion by "citing to particular parts of materials in the record, including depositions, documents, electronically stored information, affidavits or declarations, stipulations (including those made for purposes of the motion only), admissions, interrogatory answers, or other materials." Fed. R. Civ. P. 56(c)(1)(A). A litigant is unable to "create a genuine issue of material fact through mere speculation or the building of one inference upon another." *Beale v. Hardy*, 769 F.2d 213, 214 (4th Cir. 1985). "[W]here the record taken as a whole could not lead a rational trier of fact to find for the non-moving party, disposition by summary judgment is appropriate." *Teamsters Joint Council No. 83 v. Centra, Inc.*, 947 F.2d 115, 119 (4th Cir. 1996).

"In determining whether a genuine issue has been raised, the court must construe all inferences and ambiguities in favor of the nonmoving party." *HealthSouth Rehab. Hosp. v. American Nat'l Red Cross*, 101 F.3d 1005, 1008 (4th Cir. 1996).

ANALYSIS

As noted above, there are two ripe motions present before the court: (1) Plaintiff's motion to substitute expert and (2) Defendant's motion for summary judgment. Because Defendants' motion for summary judgment could be dispositive of the case, the court addresses it first.

I. Defendants' Motion for Summary Judgment.

Defendants make one argument on summary judgment—Plaintiff's case-specific expert does not identify a reasonable alternative design to the Prolift or TVT-S that would have prevented or reduced *Plaintiff's injuries*. [ECF No. 76.] According to Defendants, this lack of case-specific testimony is fatal to Plaintiff's design defect claims. *Id.* In response, Plaintiff argues there is

"alternative design" that would have prevented the product from being unreasonably dangerous, as required by *Branham*.[5] *See Hulsizer v. Magline, Inc*., No. 4:17-cv-00415, 2018 WL 5617873 (D.S.C. Oct. 29, 2018) ("[T]he Court's duty at the summary judgment stage is to consider *all* the evidence before it . . . and determine whether any question of fact exists regarding the risk-utility test.").Defendants' motion for summary judgment is denied.

II. Plaintiff's Motion to Substitute Expert Witness.

Plaintiff's motion asks for alternative relief. Plaintiff first asks the court to allow her to substitute Dr. Elliott for Dr. Iakovlev, using Rule 16(b)(4), FRCP. [ECF No. 74] Alternatively, if the court concludes that she fails to meet Rule 16(b)(4)'s "good cause" standard, Plaintiff asks the court to find that Rule 36(c), FRCP's automatic exclusion rule does not prohibit her from using Dr. Elliott's expert report and testimony at trial.

At the start of the hearing, the court informed the parties of its conclusion that Plaintiff's motion failed to establish good cause required by Rule 16(b)(4), FRCP to substitute the experts.[6]

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[5] Defendants did not argue that the general experts failed entirely to assess costs, safety, or functionality of the alternative design; instead, they argued the three factors were not assessed "*in relation to* Ms. Gardner." [ECF No. 81 at p.6 (emphasis added).] As outlined above, the court concludes that the three factors are required under *Branham*, but not necessarily "in relation to" Plaintiff.

[6] In this case, the only explanation provided by Plaintiff's counsel for naming Dr. Iakovlev when she should have named Dr. Elliott was "the sheer volume of cases being simultaneously worked up as part of Wave 8"—attorney oversight. [ECF No. 74 at p.2.] Plaintiff's counsel fails to offer any explanation for the delay between naming the wrong expert in June 2018, and moving to substitute the expert in June 2020. In any event, courts have universally held that neither carelessness nor attorney oversight serve to establish good cause. *See, e.g., Kinney v. Holiday Companies*, No. 3:07-cv-0147, 2008 WL 11396748, at *3 (D. Alaska Sept. 25, 2008) ("Plaintiff's failure to plead this claim for relief in her original complaint can only logically be characterized as an oversight, and the Ninth Circuit has held that 'carelessness is not compatible with a finding of diligence and offers no reason for a grant of relief' under Rule 16(b)(4)."); *Morden v. XL Specialty Co*., 315 F.R.D. 676, 680 (D. Utah 2016) ("Good cause . . . does not exist where a party fails . . . due to an error of law or fact, a strategic decision, or a mere oversight."), *aff'd sub nom. Morden v. XL Specialty Ins*., 903 F.3d 1145 (10th Cir. 2018); *QBE Ins. Corp. v. Jorda Enters., Inc*., No. 10-cv-21107, 2012 WL 12844302, at *2 (S.D. Fla. Aug. 6, 2012) ("Lack of diligence